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ANNEX NO. 1
BETWEEN
THE NATIONAL AERONAUTICS AND SPACE ADMINISTRATION
AND
THE MITRE CORPORATION
UNDER
NONREIMBURSABLE SPACE ACT UMBRELLA AGREEMENT SAA1-38597
FOR
THE FUTURE OF AVIATION SAFETY

ARTICLE 1. PURPOSE

This Annex shall be for the purpose of collaboration between NASA's System Wide Safety (SWS) Project and the MITRE Corporation to accelerate the deployment of aviation safety management technologies and enhance NASA's in-time aviation safety management system research within the United States. Collaborative research includes, but is not limited to; information analysis methodologies, data sharing and integration, human contribution to safety, and fostering collaboration between industry and government stakeholders.

The legal authority for this Annex, consistent with the Umbrella Agreement, is in accordance with the Space Act, Other Transactions Authority (OTA), 51 U.S.C. § 20113(e).

ARTICLE 2. RESPONSIBILITIES

A. NASA LaRC will use reasonable efforts to:

1. Jointly hold Technical Interchange Meetings where NASA and MITRE participants share research, knowledge, and findings related to Safety Management Systems (SMS) projects, especially related to System-Wide Safety (SWS) interests for NASA.
2. Share information and collaborate with MITRE on NASA's SWS research efforts and capabilities on In-time Aviation Safety Management Systems (IASMS).
3. Jointly work with MITRE to identify opportunities to advance the science and analysis of human variability and its contribution to safety (e.g. MITRE's Safety II).
4. Jointly work with MITRE to identify areas of common interest for additional collaboration opportunities.
5. Jointly work with MITRE to define future work and scope on identified areas of additional collaboration opportunities.

B. Partner will use reasonable efforts to:

1. Jointly hold Technical Interchange Meetings where MITRE and NASA participants share research, knowledge, and findings related to Safety

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Management Systems (SMS) projects, especially relative to System-Wide Safety (SWS).

2. Share information on MITRE's research efforts and capabilities on advanced analysis technologies as it relates to system wide safety efforts (i.e. Aviation Safety Information Analysis and Sharing (ASIAS)).
3. Jointly work with NASA to identify opportunities to advance the science and analysis of human variability and its contribution to safety (e.g. MITRE's Safety II).
4. Jointly work with NASA to identify areas of common interest for additional collaboration opportunities.
5. Jointly work with NASA to define future work and scope on identified areas of collaboration opportunities.

ARTICLE 3. SCHEDULE AND MILESTONES

The planned major milestones for the activities for this Annex defined in the "Responsibilities" Article are as follows:

1. NASA LaRC and MITRE will collaborate on ASIAS SMS data ingest and data fusion technology.	Within six (6) months following the effective date of this Annex.
2. NASA and MITRE shall conduct operator demonstration of SMS data fusion within a Collaborative Research Environment (CRE).	Within nine (9) months following the effective date of this Annex.
3. NASA and MITRE shall co-author a white paper to advance the understanding of the human contribution to safety, (e.g., Safety II) within aviation operations, focusing on the future role of the regulator.	Within twelve (12) months following the effective date of this Annex.
4. NASA and MITRE shall prototype initial integration of NASA algorithms with Operational Data.	Within twelve (12) months following the effective date of this Annex.
5. NASA and MITRE will identify areas of common interest for additional collaboration opportunities.	Within twelve (12) months following the effective date of this Annex.
6. NASA and MITRE will hold a Technical Interchange Meeting to aid in jointly publishing appropriate and non-proprietary findings, as provided by Partner.	Within fifteen (15) months following the effective date of this Annex.
7. Jointly attend key working group engagements to expand awareness of MITRE's research and refine the understanding of Safety II.	Within fifteen (15) months following the effective date of this Annex.

ARTICLE 4. FINANCIAL OBLIGATIONS

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There will be no transfer of funds between the Parties under this Agreement and each Party will fund its own participation. All activities under or pursuant to this Agreement are subject to the availability of funds, and no provision of this Agreement shall be interpreted to require obligation or payment of funds in violation of the Anti-Deficiency Act, (31 U.S.C. § 1341).

ARTICLE 5. INTELLECTUAL PROPERTY RIGHTS - DATA RIGHTS

A. Data produced under this Annex which is subject to paragraph C. of the Intellectual Property Rights - Data Rights Article of the Umbrella Agreement will be protected for the period of one year.

B. Under paragraph H. of the Intellectual Property Rights - Data Rights Article of the Umbrella Agreement, Disclosing Party provides the following Data to Receiving Party. The lists below may not be comprehensive, are subject to change, and do not supersede any restrictive notice on the Data provided.

1. Background Data: *The Disclosing Party's Background Data, if any, will be identified in a separate technical document.*
2. Third Party Proprietary Data: *The Disclosing Party's Third-Party Proprietary Data, if any, will be identified in a separate technical document.*
3. Controlled Government Data: *The Disclosing Party's Controlled Government Data, if any, will be identified in a separate technical document.*
4. The following software and related Data will be provided to Partner under a separate Software Usage Agreement: *None*

ARTICLE 6. TERM OF ANNEX

This Annex becomes effective upon the date of the last signature below ("Effective Date") and shall remain in effect until the completion of all obligations of both Parties hereto, or September 30, 2026, whichever comes first, unless such term exceeds the duration of the Umbrella Agreement. The term of this Annex shall not exceed the term of the Umbrella Agreement. The Annex automatically expires upon the expiration of the Umbrella Agreement.

ARTICLE 7. RIGHT TO TERMINATE

Either Party may unilaterally terminate this Annex by providing thirty (30) calendar days written notice to the other Party.

ARTICLE 8. POINTS OF CONTACT

The following personnel are designated as the Points of Contact between the Parties in the performance of this Annex.

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Management Points of Contact	
NASA Langley Research Center Jennifer Hubble Viudez Center Agreements Manager Mail Stop: 254 Langley Research Center Hampton, VA 23681 Phone: 757-864-5627 jennifer.m.hubble@nasa.gov	The MITRE Corporation MacKenzie Sestak Contract Manager 7515 Colshire Drive McLean, VA 22102-7539 Phone: 703-983-3296 msestak@mitre.org
Technical Points of Contact	
NASA Langley Research Center Lawrence J. Prinzel III, Ph.D. AST, Senior Technical Advisor, System-Wide Safety Project Mail Stop: 152 Langley Research Center Hampton, VA 23681 Phone: 757-864-2277 Lawrence.j.prinzel@nasa.gov	The MITRE Corporation Kyle Quakenbush, Ph.D. Principal Aviation Systems Engineer 7515 Colshire Drive McLean, VA 22102-7539 Phone: 703-983-9802 kquakenbush@mitre.org

ARTICLE 9. MODIFICATIONS

Any modification to this Annex shall be executed, in writing, and signed by an authorized representative of NASA and the Partner. Modification of an Annex does not modify the terms of the Umbrella Agreement.

ARTICLE 10. SIGNATORY AUTHORITY

The signatories to this Annex covenant and warrant that they have authority to execute this Annex. By signing below, the undersigned agrees to the above terms and conditions.

NATIONAL AERONAUTICS AND SPACE ADMINISTRATION
LANGLEY RESEARCH CENTER

BY: John Koelling Digitally signed by John Koelling Date: 2025.06.26 14:19:07 -04'00'
John H. Koelling
Director, Aeronautics Research Directorate

DATE:_____

THE MITRE CORPORATION

BY: DocuSigned by: Mackenzie Sestak 283AA9EF67AD46F...
MacKenzie Sestak
Contract Manager

DATE: 4/23/2025